

Authority (79.2%), Consent (97.9%), Data Controller (99.4%), Data Subject (93.3%), Legal Basis (60.1%), Non-Personal Data (76.4%), Organisational Measure (79.6%), Personal Data (98.5%), Processing (98.9%), Recipient (85.3%), Required Purpose (99.7%), Technical Measure (99.0%), Third Party (92.4%):

Privacy Policy - ChowNow ChowNow Book a Demo Products Online Ordering Grow your profits Direct Website Ordering Protect profits with commission-free ordering on your website Flex Delivery Keep more profits and deliver up to 8 miles for one flat rate Branded Mobile Apps Make it easy for diners to order with an expert-built app ChowNow App Get listed on our commission-free marketplace Order Management Simplify takeout operations POS Integrations Reduce errors by sending orders directly to your POS system Order Aggregation Boost productivity by managing all your orders and menus from one device Advanced Reporting Uncover insights to optimize your business with real-time analytics Marketing Attract and retain diners Automated Email Marketing Encourage diners to order more often with emails proven to drive sales Restaurant Websites Attract diners with a site optimized for ordering and search Order Better Network Get discovered by more diners and take orders across popular sites like Google and Yelp Rewards Program Keep diners coming back with irresistible rewards that encourage direct orders Integrations Pricing Resources Case Studies Learn how real restaurants have partnered with ChowNow Blog Access resources to help your restaurant succeed Restaurant Support Get help managing your orders, menu, and account with our dedicated tools and resources.

Required Purpose (64.1%):

Find answers and contact support here.

Legal Basis (75.8%), Non-Personal Data (73.2%), Processing (99.4%), Technical Measure (99.4%):

Company About Learn how we help restaurants thrive Careers Join our team of restaurant experts Partners Find trusted solutions from handpicked partners in the industry Login Book a Demo Sign Up Login Call or text 888.707.2469 for support Privacy Policy Effective as of December 28, 2022 For specific information about how ChowNow collects and uses cookies, please click here.

Personal Data (99.5%), Third Party (87.3%):

We have created this privacy policy (the Privacy Policy) to describe what kinds of personal information we may obtain through your interaction with ChowNow, including our Direct ordering Platform, Discover marketplace Platform, and our other apps, platforms and websites (collectively, the Services).

Consent (66.7%):

By visiting our websites, platforms and applications, or using the ChowNow Services, you accept the practices described in this Privacy Policy and Terms of Service.

Consent (81.7%), Processing (84.9%):

If you do not agree to (or cannot comply with) all of the terms of this Privacy Policy, you may not access or use the Services.

Authority (64.4%), Right (94.3%):

If you accept or agree to this Privacy Policy on behalf of a company or other legal entity, you represent and warrant that you have the authority to bind that company or other legal entity to the Privacy Policy and, in such event, you and your will refer and apply to that company or other legal entity.

Personal Data (98.1%), Processing (97.9%):

INFORMATION WE COLLECT In the course of operating the Services, ChowNow collects or receives the following types of information, which may include personal information.

Personal Data (97.2%), Processing (77.5%), Required Purpose (68.3%), Third Party (89.6%):

a) Contact Information When you sign up to use the Services, join our e-mail list, enter a promotion or participate in our referral program, you may be required to provide us with personal information about yourself, such as your name, address, phone number, and e-mail address (collectively, the Contact Information).

Personal Data (99.7%), Required Purpose (75.8%):

INFORMATION WE COLLECT a) Contact Information b) Billing Information c) Geolocational Information d) Other Information 2.

Required Purpose (98.8%):

b) Billing Information To submit orders through a Platform, you will be required to provide certain information in addition to the Contact Information noted above.

Non-Personal Data (80.9%), Personal Data (99.0%):

Such information may include a debit card number, credit card number, billing address, expiration date, security code and similar information (collectively, the Billing Information).

Automated Decision Making (96.7%), Data Source (90.7%), Required Purpose (88.1%), Third Party (64.7%):

c) Geolocational Information To provide access to the Services while you are using an electronic device, we automatically collect geolocational information from your mobile device, your wireless carrier, or certain third-party service providers (Geolocational Information).

Processing (99.2%):

Collection of such Geolocational Information occurs only when the Services are running on your mobile device.

Processing (94.5%):

You may control the collection of Geolocational Information through the user settings on your device.

Non-Personal Data (81.6%), Personal Data (92.1%), Processing (92.1%):

d) Other Information In addition to the Contact Information, the Billing Information, and the Geolocational Information, we may collect additional information regarding you and your use of our Services, your interactions with us and our advertising, as well as information regarding your computer or other devices used to access our Services (collectively, the Other Information).

Data Source (62.3%), Personal Data (98.5%):

Additional information about yourself that you voluntarily provide to us, such as your food orders, favorite foods, favorite restaurants, gender, birthdate, interests, and biometric information (such as fingerprints and voice recordings).

Non-Personal Data (91.3%), Personal Data (97.5%):

Information that we automatically collect when you use the Services, such as (i) information about the device from which you access the Services (i.e., the type of device, the advertising identifier (IDFA or AdID), the operating system and version (for example iOS, Android or Windows), your carrier and network type (WiFi, 3G, 4G, LTE); (ii) your IP addresses (which may consist of a static or dynamic IP address and will sometimes point to a specific identifiable computer or device); (iii) browser type and language; (iv) referring and exit pages and URLs; (v) date and time; (vi) amount of time spent on particular pages; (vii) what features of the Services you use or visit, including your use of Platform (Direct, Discover, or both); (viii) what you order and from which restaurants; and (ix) similar information concerning your use of the Services.

Technical Measure (97.7%):

From Cookies and Similar Technology.

Required Purpose (74.9%):

Like most online services, we automatically receive standard technical information when you connect with the Services.

Technical Measure (98.4%):

We collect this information through browser cookies, pixels, web server logs, web beacons, and similar technologies.

Required Purpose (98.1%):

These features enable us to personalize your experience with the Services, understand how you use them, maintain a persistent session, and improve and further develop the Services.

Processing (94.6%), Required Purpose (66.9%):

Cookies are small packets of data that a website stores on your computers hard drive so that your computer will remember information about your visit.

Required Purpose (95.9%):

We use cookies to help us collect Other Information and to enhance your experience using the Services.

Data Subject (83.8%), Processing (96.1%), Required Purpose (98.5%):

Specifically, we use cookies to authenticate users, personalize your experience when using the Services, analyze which features of the Services you use most frequently, and measure and optimize advertising and promotional effectiveness.

Required Purpose (89.1%), Retention (86.2%):

To do this, we may use both session cookies, which expire once you close your web browser, and persistent cookies, which stay on your computer until you delete them.

Required Purpose (82.9%), Third Party (94.7%):

When the Services are made available to you through third-party sites, please be aware that these other sites maintain their own policies regarding cookies and the collection and use of information.

Legal Basis (93.9%):

Information that we collect or receive from Facebook and/or other sites on which you have used the Services in accordance with their terms of use and privacy policies and applicable law.

Required Purpose (92.8%), Third Party (86.6%):

Third-Party Analytics. We use third-party analytics services (such as Google Analytics and mParticle) to evaluate your use of the Services, compile reports on activity, collect demographic data, analyze performance metrics, and collect and evaluate other information relating to the Services and mobile and internet usage.

Recipient (72.7%), Required Purpose (98.0%), Third Party (98.6%):

These third parties use cookies and other technologies to help analyze and provide us the data.

Consent (95.4%), Processing (99.2%), Required Purpose (92.2%):

By accessing and using the Services, you consent to the processing of data about you by these analytics providers in the manner and for the purposes set out in this Privacy Policy.

Required Purpose (88.1%):

To the extent any such information is at the individual level or is used for secondary marketing

purposes, Canadian users may opt-out of such collection or use by sending an e-mail to privacy@chownow.com or writing to us at: ChowNow, Inc.

Non-Personal Data (84.8%):

We may use assumptions or extrapolations that have been drawn from any of the information identified above to create a profile about a consumer reflecting the consumers preferences, characteristics, psychological trends, predispositions, behavior, attitudes, intelligence, abilities and aptitudes.

Processing (98.5%), Required Purpose (99.5%):

HOW WE SHARE YOUR INFORMATION We may share transfer, or disclose Contact Information, Billing Information, Geolocational Information, and/or Other Information if you consent to us doing so, as well as in the following circumstances: To provide our Services to you.

Personal Data (82.1%), Required Purpose (99.1%), Third Party (95.6%):

To provide you with our Services, we need to share your name, phone number, meal order, and, if you are ordering for delivery, your physical address with the restaurants from which you order and with any third parties that are involved in, or provide services in connection with, such orders, such as delivery services, licensees of our Platforms, point-of-sale partners, middleware partners, rewards network partners, food and beverage industry partners, and other similar third parties.

Required Purpose (98.5%):

To provide our Services to restaurants we cooperate with.

Required Purpose (98.4%):

To administer our rewards, referral, and promotional programs.

Recipient (76.1%), Required Purpose (86.6%):

In order to administer these programs, we may share your Contact Information and Other Information with the restaurants from which you order, the delivery services that deliver your orders, and any other third parties related to such rewards, referral and promotional programs.

Data Source (75.0%), Personal Data (99.2%), Processing (75.7%):

However, Information (including phone numbers) obtained from any short code opt-in will not be shared with third parties for their own marketing purposes.

Required Purpose (99.8%):

To better understand and serve our customers.

Non-Personal Data (83.6%), Required Purpose (99.6%):

In an ongoing effort to better understand our users and our Services, we might analyze Contact Information, Billing Information, Geolocational Information and/or Other Information in aggregate

form in order to operate, maintain, manage, and improve the Services.

Non-Personal Data (63.5%), Required Purpose (85.9%):

This aggregate information does not identify you personally.

Non-Personal Data (95.3%), Recipient (73.7%):

We may share this aggregate data with our affiliates, agents, and business partners.

Non-Personal Data (94.7%):

The information used by such analytics services is generally at the aggregate level.

Non-Personal Data (74.1%), Required Purpose (98.7%):

We may also disclose aggregated user statistics in order to describe our products and services to current and prospective business partners and to other third parties for other lawful purposes.

Required Purpose (99.3%):

We also share the email and phone number of authenticated users and guests who order without signing it (e.g., via Apple Pay or Google Pay) with mParticle, which provides us with analytics services as described in section 1.d) above.

Required Purpose (99.5%):

To assist us running our business.

Required Purpose (74.6%), Third Party (71.2%):

We may employ other companies and individuals to perform functions on our behalf.

Required Purpose (92.4%):

Examples may include providing marketing assistance, detecting and preventing fraudulent activity, order fulfillment, billing, and customer service.

Legal Basis (86.9%), Required Purpose (87.2%):

These other companies will have access to the Contact Information, the Billing Information, the Geolocation Information, and the Other Information only as necessary to perform their functions and to the extent permitted by law.

Required Purpose (91.8%):

To receive assistance with our advertising.

Required Purpose (98.5%), Third Party (88.2%):

We share Other Information about your activity in connection with your use of the Services with third-party advertisers and remarketers for the purpose of tailoring, analyzing, managing, reporting, and optimizing advertising you see on the Platforms, the Websites, the Apps, and elsewhere.

Technical Measure (68.0%):

By using ChowNows web, iOS, or Android ordering systems you are also bound to the Google Maps

APIs Terms of Service found here:

<https://developers.google.com/maps/terms-20180207#3-privacy-and-personal-information>.

Required Purpose (96.9%):

These third parties may use cookies, pixel tags (also called web beacons or clear gifs), and/or other technologies to collect such Other Information for such purposes.

Required Purpose (99.7%), Technical Measure (92.3%):

Pixel tags enable us, and these third-party advertisers, to recognize a browser's cookie when a browser visits the site on which the pixel tag is located in order to learn which advertisement brings a user to a given site.

Required Purpose (89.9%):

As part of the sale or other transfer of our business.

Required Purpose (86.9%):

As we develop our businesses, we might sell or buy businesses or assets.

Processing (96.4%):

In the event of a corporate sale, merger, reorganization, sale of assets, dissolution, investment, or similar corporate event, the Contact Information, Billing Information, Geolocational Information, and Other Information may be part of the transferred assets.

Required Purpose (77.2%):

For legal purposes.

Authority (79.6%), Right (98.1%):

To the extent permitted by law, we may also disclose Contact Information, the Billing Information, the Geolocational Information, and the Other Information when required by law, court order, or other government or law enforcement authority or regulatory agency, or whenever we believe that disclosing such information is necessary or advisable, for example, to protect the rights, property, or safety of ChowNow or others.

Organisational Measure (86.0%), Processing (74.2%):

We will take reasonable measures to require that any party receiving any of your personal information from us undertakes to: (i) retain and use such information only for the purposes set out in this Privacy Policy; (ii) not disclose your personal information except with your consent, as permitted by law, or as permitted by this Privacy Policy; and (iii) generally protect the privacy of your personal information.

Processing (96.0%):

We cannot guarantee the security of our databases, nor can we guarantee that the information you

supply will not be intercepted while being transmitted to and from us over the Internet.

Third Party (77.2%):

ChowNow has no control over the privacy practices or the content of any of our business partners, advertisers, sponsors, or other websites to which we provide links.

Data Subject (85.6%):

Registered Users (i.e., individuals who register to use the Services) cannot opt out of receiving transactional e-mails related to their account.

Organisational Measure (92.0%):

We will use commercially reasonable efforts to process such requests in a timely manner.

Personal Data (90.0%), Third Party (88.2%):

DO NOT TRACK As discussed above, third parties such as advertising networks and analytics providers may collect information about your online activities over time and across different websites when you access or use the Services.

Consent (80.9%):

Currently, various browsers offer a Do Not Track option, but there is no standard for commercial websites.

Legal Basis (96.2%):

NOTICE TO CALIFORNIA RESIDENTS If you are a resident of California, you have additional rights under the California Privacy Rights Act (the CPRA).

Scale Non-EU (76.6%):

NOTICE TO NEVADA RESIDENTS If you are a resident of Nevada, you have the right to opt-out of the sale of personal information to third parties.

Personal Data (96.3%):

You can exercise this right by contacting us at privacy@chownow.com with the subject line Nevada Do Not Sell Request and providing us with your name and the email address associated with your account.

Scale Non-EU (95.6%):

RESIDENTS The Services are operated in the United States.

Legal Basis (75.4%), Scale Non-EU (95.6%):

If you are located outside of the United States, please be aware that any information you provide to us will be transferred to the United States where the privacy laws may not be as protective as those in your country of origin.

Consent (90.1%), Scale Non-EU (91.6%):

If you are located outside the United States and choose to use the Services, you consent to any transfer and processing of your personal information in accordance with this Privacy Notice, and you do so at your own risk.

Organisational Measure (97.6%):

We may update this Privacy Policy from time to time and without prior notice to you to reflect changes in our privacy practices.

Organisational Measure (94.6%):

We will indicate at the top of this Privacy Policy when it was most recently updated, and we encourage you to revisit this page periodically to stay aware of any changes.

Consent (87.9%):

HOW TO CONTACT US If you have any questions or comments about this Privacy Policy, our privacy practices, or if you would like to exercise your rights and choices, please email us at privacy@chownow.com or call us at 1-888-707-CHOW.